

22STCV29094 22STCV29094

County: los-angeles

Division: Civil Law and Motion

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Case Number: 22STCV29094 Hearing Date: August 28, 2026 Dept: 617

Dept.

617

Date:

8-28-26

Case

#: 22STCV29094

Trial

Date: 1-19-27

SUMMARY JUDGMENT/SUMMARY ADJUDICATION

MOVING

PARTY: Defendant, Certain Underwriters at Lloyd's of London Subscribing to
Policy Number AG19000031-00

RESPONDING

PARTY: Plaintiffs, Salar Benschian, Albert Benschian, and Elham Zarabi

RELIEF

REQUESTED

Motion

for Summary Judgment, or in the Alternative, Summary Adjudication

SUMMARY

OF ACTION

Upon

returning home from vacation, Plaintiffs Salar Benshian, Albert Benshian, and Elham Zarabi discovered their home had been damaged and burglarized. They immediately reported the crime to police and identified missing jewelry, silverware, and other property totaling \$553,700. Plaintiffs timely submitted claims to Defendants Metlife Auto & Home Insurance Agency Inc. and Certain Underwriters at Lloyd's of London Subscribing to Policy Number AG19000031-00 (Lloyd's) under their property insurance policies. Metlife denied Plaintiffs' claim due to a failure to "fully cooperate" with its investigation and Lloyd's never responded. Plaintiffs allege that Metlife's decision was based on their ethnicity given the emphasis it purportedly placed on their country of origin in their examination. Plaintiffs also claim that Lloyd's has a policy of making claims "virtually impossible" by failing to identify the manner of filing a claim in California.

On

June 15, 2023, Plaintiffs filed a First Amended Complaint against Metlife, Orchid Underwriters Agency, LLC, and Lloyd's for breach of contract, breach of the implied covenant of good faith and fair dealing, unfair business practices, negligent infliction of emotional distress, and bad faith denial of insurance coverage. Plaintiffs also assert claims against Metlife for violations of Civil Code section 51 and the Business and Professions Code. Defendant Parviz Aminpour was substituted for Doe 2 on January 10, 2024.

RULING: Granted.

Evidentiary

Objections: Sustained in part.

Lloyd's

objection to the supplemental declaration of Alan K. Abrams is sustained because the declaration was not made under penalty of perjury. (Evid. Code, § 2015.5.) As this makes the entire declaration inadmissible, the Court does not rule on Lloyd's objections to the individual paragraphs and exhibits.

Request

for Judicial Notice: Denied.

The

Court does not take judicial notice of the prior minute orders because they are irrelevant to disposition of the motion.

The

instant hearing comes after the Court continued Lloyd's motion for summary judgment, or alternatively summary adjudication, to permit Plaintiffs' counsel to submit a supplemental declaration authenticating their exhibits. (See *Walton v. Victor Valley Community College Dist.* (2026) 119 Cal.App.5th 1164, 1170-71.) Counsel did so; however, the declaration was not made under penalty of perjury and is thus inadmissible. (Evid. Code, § 2015.5.) At issue are Plaintiffs' claims against Lloyd's for: (1) Breach of Contract; (2) Breach of the Implied Covenant of Good Faith and Fair Dealing; (3) Unfair Business Practices; (4) Negligent Infliction of Emotional Distress; and (5) Bad Faith Denial of Insurance Coverage. Lloyd's argues that no triable issue exists because Plaintiffs did not submit an insurance claim. Plaintiffs oppose the motion, maintaining that a triable issue exists because they submitted an insurance claim to Mendes & Mount, LLP, Lloyd's designated agent to accept service of lawsuits. Because no triable issue exists as to whether Plaintiffs submitted an insurance claim, Lloyd's motion is granted.

The pleadings frame the issues for motions, "since it is those

allegations to which the motion must respond. (Citation.)" (*Scolinos v. Kolts* (1995) 37 Cal. App. 4th 635, 640-641; *FPI Development, Inc.*

v. Nakashima (1991) 231 Cal.App.3d 367, 382-83; *Jordan-Lyon Prods., LTD. v. Cineplex Odeon Corp.* (1994) 29 Cal.App.4th 1459, 1472.) The purpose of a motion for summary judgment or summary adjudication "is to provide courts with a mechanism to cut through the parties' pleadings in order to determine whether, despite their allegations, trial is in fact necessary to resolve their dispute." (*Aguilar v. Atl. Richfield Co.* (2001) 25 Cal.4th 826, 843.) "Code of Civil Procedure section 437c, subdivision (c), requires the trial judge to grant summary judgment if all the evidence submitted, and 'all inferences reasonably deducible from the evidence' and uncontradicted by other inferences or evidence, show that there is no triable issue as to any material fact and that the moving party is entitled to judgment as a matter of law." (*Adler v. Manor Healthcare Corp.* (1992) 7 Cal.App.4th 1110, 1119.)

"On

a motion for summary judgment, the initial burden is always on the moving party to make a prima facie showing that there are no triable issues of material fact." (*Scalf v. D.B. Log Homes, Inc.*

(2005) 128 Cal.App.4th 1510, 1519.) A defendant moving for summary judgment “has met his or her burden of showing that a cause of action has no merit if the party has shown that one or more elements of the cause of action . . . cannot be established.” (Code Civ. Proc., § 437c, subd. (p)(2).) “Once the defendant . . . has met that burden, the burden shifts to the plaintiff . . . to show that a triable issue of one or more material facts exists as to the cause of action or a defense thereto.” (Ibid.)

“When deciding whether to grant summary judgment, the court must consider all of the evidence set forth in the papers (except evidence to which the court has sustained an objection), as well as all reasonable inferences that may be drawn from that evidence, in the light most favorable to the party opposing summary judgment.” (Avivi v. Centro Medico Urgente Medical Center (2008) 159 Cal.App.4th 463, 467; see also Code Civ. Proc., § 437c, subd. (c).) “An issue of fact can only be created by a conflict in the evidence. It is not created by speculation, conjecture, imagination or guesswork.” (Lyons v. Security Pacific National Bank (1995) 40 Cal.App.4th 1001, 1041 (citation omitted).)

Lloyd's argues that Plaintiffs' claims fail because they did not submit an insurance claim. “[T]he total failure to comply with the notice and proof of loss conditions will excuse insurer liability due to the failure of a condition precedent.” (1231 Euclid Homeowners Assn. v. State Farm Fire & Casualty Co. (2006) 135 Cal.App.4th 1008, 1018.) Under such circumstances, the insured has no right to benefits and cannot hold the insurer liable for breach of contract or bad faith for its failure to pay. (Id. at pp. 1018-21.) The insurer likewise cannot be liable under the UCL for enforcing “the express conditions of the Policy in requiring Plaintiff to provide a proof of claim.” (Quattrocchi v. Allstate Indemnity Co. (E.D. Cal. Jan. 9, 2018) 2018 WL 347779 at *3.)

Lloyd's has met its burden. Under the insurance policy, Plaintiffs are required to provide Lloyd's notice and proof of loss “[i]n the event of loss or damage that may give rise to a claim.” [Campbell Decl. ¶ 2, Ex. A]. Brit was the lead underwriter, Orchid Underwriting Agency assisted with issuance of the policy, Peninsula Insurance Bureau was the third party administrator appointed to handle claims, and Mendes & Mount was the law firm designated to accept

service of lawsuits arising out of insurance claims submitted under the policy. [Id. ¶¶ 2-3, 8; Thome Decl. ¶ 2; Smith Decl. ¶ 2.] None reported receiving a claim or proof of loss from Plaintiffs. [Campbell Decl. ¶ 7; Wade Decl. ¶ 7; Thome Decl. ¶ 5; Smith Decl. ¶¶ 3-6.] This is sufficient to show that Plaintiffs did not submit an insurance claim. It follows that Lloyd's also did not breach any duty to Plaintiffs in failing to pay benefits. (See *Burgess v. Superior Court* (1992) 2 Cal.4th 1064, 1072 ["[T]raditional elements of duty, breach of duty, causation, and damages apply" to negligent infliction of emotional distress claim].) The burden therefore shifts to Plaintiffs to raise a triable issue of material fact.

Plaintiffs

fail to meet their burden. As mentioned above, Plaintiffs did not present admissible evidence in opposition to the motion because counsel's declaration was not made under penalty of perjury. Nonetheless, even if Plaintiffs presented evidence that they submitted a claim to Mendes & Mount, this would be insufficient to raise a triable issue. The policy designates Mendes & Mount to receive only service of suit. [Campbell Decl. ¶ 2, Ex. A.] Any purported difficulty in locating the designated agent to receive insurance claims does not substitute for proper service, especially considering that the policy listed the contact information for Brit's "Complaints Department" and Plaintiffs could have contacted their broker. [Ibid.] Plaintiffs therefore fail to raise a triable issue of material fact and Lloyd's is entitled to summary judgment.

Lloyd's

motion is therefore granted.

Lloyd's

to give notice.